No. 05-20-0517-CV

IN THE COURT OF APPEALS
FOR THE FIFTH DISTRICT OF TEXAS
AT DALLAS

IN RE MARRIAGE

MALCOLM JOHNSON
Appellant,

v.

VERONICA POWELL-JOHNSON
Appellee.

On Appeal from the 255th Judicial District Court, Dallas County, Texas
Trial Court Cause No. DF-19-12398

APPELLEE'S BRIEF ON THE MERITS

Respectfully submitted,

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STATEMENT REGARDING ORAL ARGUMENT

This appeal does not present unique legal issues. While the record is somewhat convoluted, the evidence reflected therein is not particularly complex or unusual. Rather, the record consists of evidence regarding the marital estate and factors supporting a disproportionate division of that estate favoring the wife. There were no contested property values at the trial court as Appellant failed to prepare an inventory and appraisement. Appellant further failed to respond to interrogatory and disclosure requests, and submitted inadequate documents in response to production requests.

One of Appellant's grounds for appeal involves the performance of Appellant's trial counsel. Since that is not an issue for appeal, there is no need for oral argument on this issue. This appeal involves issues this Court has resolved many times before, and without the need for oral argument.

That being said, Appellee conditions her request for oral argument upon Appellant's request for same and in the event that this Court orders oral argument.

STATEMENT OF THE CASE

Nature of the Case: This case is a nightmare divorce without children, resulting in a just and right division of the known community estate.

Bench Trial Proceedings: On February 27, 2020, an approximately two-hour bench trial was held, and proceedings adjourned at 11:47 a.m. with Honorable Kim Cooks, Judge Presiding. RR 1:1 and 1:47.

Motion New Trial: On March 23, 2020 Petitioner filed a motion for new trial alleging ineffective assistance of counsel. CR1 282-283.

Bench Trial Disposition: On April 3, 2020 Honorable Kim Cooks signed a Final Decree of Divorce with a just and right division of the known marital estate after listening to the parties testify and using her judicial discretion to judge the veracity of the witnesses. CR 1:286-293.

New Trial Proceedings: On April 14, 2020 hearing was held with Honorable Kim Cooks presiding. RR2 1-21. Honorable Kim Cooks denied petitioner's request for new trial. RR2 21.

New Trial Disposition: On April 17, 2020 Judge Cooks signed the Order Denying Motion for New Trial. CR1 295.

ABBREVIATIONS AND RECORD REFERENCES

Appellant Malcolm Johnson shall be referred to as "Malcolm" or "Appellant." Appellee Veronica Powell-Johnson shall be referred to as "Veronica" or "Appellee."

The Clerk's Record will be referred to as "CR" followed by the volume and page, as in "CR1 282-283." The Reporter's Records will be referred to as "RR" and will be cited by volume and page numbers, where applicable. [The table of clerk's record volumes is omitted from this transcription.]

SUMMARY OF ARGUMENT

[The summary of Reply Issue 1 is omitted from this transcription.]

Reply Issue 2:

While Veronica is having trouble distinguishing Issue 2 from Issue 1, Veronica asserts the evidence is legally and factually sufficient to support the trial court's granting of the divorce on fault grounds, including cruelty, other Murff factors, and her tort claims of assault and sexually transmitted diseases, and rendering a disproportionate portion of the disclosed community property to Veronica.

Reply Issue 3:

Veronica believes this issue should be stricken from Malcolm's brief as this is not a ground for new trial or appeal.

Reply Issue 4:

The Associate Judge used appropriate discretionary powers in granting Veronica attorney fees as requested in her Motion for Temporary Orders During Appeal (CR5 11, item d) and the Associate Judge modified his ruling by hand on the formal order, which is being attached as Appendix 1, so that these fees only become due on the unsuccessful appeal of Malcolm. Malcolm did not ask for attorney fees on successful appeal before the trial court.

Veronica cannot find this Order in the clerk's record and she has filed a request for it to be formally produced by the clerk.

ARGUMENT & AUTHORITIES

A. Standard of Review—Abuse of Discretion

Most family law appealable issues are evaluated for abuse of discretion by a trial court. *In re A.B.P.*, 291 S.W.3d 91, 95 (Tex. App.—Dallas 2009, no pet.) A trial court abuses its discretion when it acts arbitrarily or unreasonably, or without any reference to guiding rules and principles. *Worford v. Stamper*, 801 S.W.2d 108, 109 (Tex. 1990) (per curiam). In an appellate factual sufficiency review, all the evidence in the record, both supporting and contrary to the trial courts' finding is examined. *See Ortiz v. Jones*, 917 S.W.2d 770, 772 (Tex. 1996) (per curiam); *In re C.A.S.*, 405 S.W.3d 373, 382–83 (Tex. App.—Dallas 2013, no pet.). Reversal on appeal is granted only if the trial court's finding misapplied the law, or is so against the great weight of the evidence as to be clearly wrong and unjust. *Id.*

When determining if the trial court abused its discretion, the appellate court considers whether the trial court (1) had sufficient evidence upon which to exercise its discretion, and (2) erred in its application of that discretion. *Moroch v. Collins*, 174 S.W.3d 849, 857 (Tex. App.—Dallas 2005, pet. denied). A trial court does not abuse its discretion if there is some evidence of a substantive and probative character to support the decision. *Id.*; *see also In re C.A.S.*, 405 S.W.3d at 383.

Trial courts are tasked with dividing the community estate in a "just and right" manner, considering the rights of both parties. Tex. Fam. Code Ann. § 7.001. Thus, a

trial court would abuse its discretion in dividing community property if that property was not divided in a just and right manner. Trial courts are afforded wide discretion in dividing marital property upon divorce and, absent an abuse of discretion, this Court will not disturb the property division. *Murff*, 615 S.W.2d at 698; *Chavez v. Chavez*, 269 S.W.3d 763, 766 (Tex. App.—Dallas 2008, no pet.). "Equality in the division is not required, and this Court indulges every reasonable presumption in favor of the proper exercise of discretion by the trial court in dividing the community estate." *Toles v. Toles*, 45 S.W.3d 252, 264 (Tex. App.—Dallas 2001, pet. denied). Appellate courts reverse only if the record demonstrates the trial court clearly abused its discretion, and the error materially affected the just and right division of the community estate. *Jacobs v. Jacobs*, 687 S.W.2d 731, 732–33 (Tex. 1985).

However, the abuse of discretion measure of a trial court's ruling does not apply to issues brought up on appeal that are not valid appealable issues, such as ineffective assistance of counsel. This is not a ground for appeal, as the relief for Appellant in this instance is suing Appellant's trial attorney for malpractice. Abuse of discretion is also not a standard when the Appellant complains about relief a trial court granted to Appellee, when Appellant never requested his own relief from the trial court. Appellee cannot say similar relief should be granted to him on appeal when he never requested such relief from the trial court.

B. Reply Issue I

Evidence supports the Trial Court finding Malcolm at fault for the divorce on the grounds of adultery and/or cruelty.

Reply Issue I, Point B.

Malcolm incorrectly argues that the first mentioned ground for divorce is the only ground, misunderstanding that a court's later rulings may add to the grounds for divorce.

Malcolm, in his Appellant Brief on page 31 (Issue I, point B), focuses on the differences in the grounds for divorce as found in (1) the Trial Court's Memorandum Opinion (CR1 251), (2) the Final Decree of Divorce (CR1 255), (3) the Trial Court's initial findings and conclusions (CR3 4), and (4) the Trial Court's supplemental findings (CR3 7 & 8). Malcolm uses these differences to incorrectly conclude that he was found not at fault for the divorce since the Trial Court's ruling memorandum and the decree only listed the ground of insupportability.

Malcolm, however, fails to acknowledge that under well-established decisional precedent, any conflict between the original findings and later findings are resolved definitely in favor of the later findings. *See Redman v. Bennett*, 401 S.W.2d 891 (Tex. Civ. App.—Tyler 1966, no writ); *Anderson v. Geraghty*, 212 S.W.2d 972, 974 (Tex. Civ. App.—San Antonio 1948, no writ). The later findings merely state other grounds for the divorce, i.e., adultery and cruelty, in addition to [remainder of this paragraph omitted from this transcription].